From Patchwork to Playbook:

Building a Cohesive Food Labeling and Ingredient Compliance Strategy in a Rapidly Changing Federal-State Environment

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The New Compliance Challenge Is Not ‘Federal or State’—It Is ‘Both, Now’

Today’s Roadmap

Federal: GRAS reform, post-market assessment of chemicals in food, nutrition labeling

State: ingredient bans, warning labels, UPF definitions, GRAS disclosure

Federal/State initiatives colliding and creating uncertainty and product liability concerns

Building a unified strategy

My Ultimate Goal for You







FDA's Authority Over Food Labeling & Ingredients

Core Regulatory Mechanism: A food is deemed "misbranded" if its labeling fails to comply with statutory standards — misbranded food may not be introduced into interstate commerce

Mandatory Label Elements:

- Statement of Identity (common or usual name)
- Ingredient Declaration (all ingredients, in descending order of predominance)
- Net Quantity of Contents
- Name and place of business of manufacturer, packer, or distributor
- Nutrition Facts panel (mandatory since NLEA 1990)

Claims Regulation:

- Nutrient Content Claims — must conform to FDA-defined descriptors (e.g., "low fat," "high fiber")
- Health Claims — must be authorized by FDA regulation or based on authoritative statements of federal health agencies
- Structure/Function Claims — permitted for foods and supplements, but different standards apply to each

Ingredient Safety:

- Food Additives Amendment (1958): substances added to food must be pre-approved unless GRAS
- FALCPA (2004): mandatory allergen labeling for the major food allergens

The State Layer & Federal Preemption — Where the Complexity Lives

- **NLEA Preemption (1990):** Section 403A expressly preempts state requirements that are "not identical to" federal requirements in defined areas:
  - Standards of identity (21 U.S.C. § 343(g))
  - Labeling of the type required by §§ 343(c), (e), (i)(2), (w), (x) — imitation labeling, signature line, net contents, ingredient declaration, allergen labeling
  - Labeling of the type required by §§ 343(b), (d), (f), (h), (i)(1), (k) — product identity, misleading containers, prominence, common or usual name
  - Nutrition labeling (§ 343(q))
  - Nutrient content claims and health claims (§ 343(r))
- **Critical Exception — Safety Warnings Are NOT Preempted:**
  - NLEA "shall not be construed to apply to any requirement respecting a statement in the labeling of food that provides for a warning concerning the safety of the food or component of the food." NLEA § 6(c)(2), Pub. L. 101–535, 104 Stat. 2364 (1990) (set out as a note under 21 U.S.C. § 343-1)
- **State Petition for Exemption (§ 343-1(b)):** States may petition FDA for exemption from preemption if the state requirement (1) would not violate federal law, (2) would not unduly burden interstate commerce, and (3) addresses a need not met by federal requirements

FDA’s 2026 Human Foods Program Priorities

Moving from Disclosure to Systematic Ingredient Governance

Food Chemical Safety

- GRAS Reform (Voluntary → Mandatory)
- Post-Market Chemical Reviews
- Contaminant Action Levels
- Natural Color Additive Work
- Dietary Supplement Oversight
- Caffeine & Allergen Labeling

Nutrition & Labeling

- Front-of-Package (FOP) Labeling
- "Healthy" Claim Implementation
- Added Sugar Reduction
- Sodium Reduction Targets
- Online Grocery Labeling
- Compliance Dates: 3-4 Years

Federal: GRAS Reform



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HHS/FDA **RIN:** 0910-AJ02 **Publication ID:** Spring 2025

Title: •Substances Generally Recognized as Safe

Abstract:

This proposed rule, if finalized, would amend the Generally Recognized as Safe (GRAS) regulations in 21 CFR parts 170 and 570 to require the mandatory submission of GRAS notices for the use of human and animal food substances that are purported to be GRAS. Food substances include both ingredients and substances added indirectly (such as from food packing). Food substances that are listed or affirmed as GRAS for the intended use by regulation, or for which FDA has already issued a no questions letter" on its GRAS notice inventory, would be exempted. The proposed rule would clarify that FDA maintain and update the a public-facing GRAS notice inventory for all substances that are the subject of mandatory GRAS notice for its conditions of intended use. The proposed rule would also clarify the process under which FDA would determine that a substance is not GRAS.

Agency: Department of Health and Human Services(HHS)
Priority: Economically Significant
RIN Status: First time published in the Unified Agenda
Agenda Stage of Rulemaking: Proposed Rule Stage
Major: Undetermined
Unfunded Mandates: Undetermined
EO 14192 Designation: Regulatory
CFR Citation: 21 CFR part 170 21 CFR part 570 (To search for a specific CFR, visit the Code of Federal Regulations.)
Legal Authority: 21 U.S.C. 321 21 U.S.C. 342 21 U.S.C. 348 21 U.S.C. 371
Legal Deadline: None

119TH CONGRESS
1ST SESSION

H. R. 4958

To amend the Federal Food, Drug, and Cosmetic Act to require notification to the Food and Drug Administration prior to use of substances as generally recognized as safe, reassessment of the safety of certain substances marketed as generally recognized as safe, provide resources for reviews and reassessments, and for other purposes.

IN THE HOUSE OF REPRESENTATIVES

AUGUST 12, 2025

Mr. PALLONE introduced the following bill; which was referred to the Committee on Energy and Commerce

119TH CONGRESS
2D SESSION

H. R. 7291

To direct the Secretary of Health and Human Services, acting through the Commissioner of Food and Drugs, to establish a board to review certain designations that a substance used in food is generally recognized as safe, with respect to the intended use of such substance, and for other purposes.

IN THE HOUSE OF REPRESENTATIVES

JANUARY 30, 2026

Mr. LAWLER introduced the following bill; which was referred to the Committee on Energy and Commerce

119TH CONGRESS
2D SESSION

H. R. _____

To amend the Federal Food, Drug, and Cosmetic Act to provide for the implementation of reforms to enhance food safety and affordability, and for other purposes.

IN THE HOUSE OF REPRESENTATIVES

Mrs. CAMMACK introduced the following bill; which was referred to the Committee on _____

119TH CONGRESS
1ST SESSION

S. 2341

To amend the Federal Food, Drug, and Cosmetic Act to impose requirements for substances generally recognized as safe, to require the Commissioner of Food and Drugs to reassess the safety of chemicals added to food, and for other purposes.

IN THE SENATE OF THE UNITED STATES

JULY 17, 2025

Mr. MARKEY (for himself, Mr. BOOKER, Ms. WARREN, and Mr. BLUMENTHAL) introduced the following bill; which was read twice and referred to the Committee on Health, Education, Labor, and Pensions

119TH CONGRESS
1ST SESSION

S. 3122

To amend the Federal Food, Drug, and Cosmetic Act to require notifications to the Food and Drug Administration regarding food substances generally recognized as safe, and for other purposes.

IN THE SENATE OF THE UNITED STATES

NOVEMBER 6, 2025

Mr. MARSHALL (for himself, Mrs. BRITT, and Mr. SCOTT of Florida) introduced the following bill; which was read twice and referred to the Committee on Health, Education, Labor, and Pensions

FDA's Post-Market Assessment Activities

FDA NEWS RELEASE

FDA Finalizes Food Chemical Safety Post-Market Assessment Program, Launches Reassessment of BHT, ADA

For Immediate Release: May 12, 2026

The Enhanced Systematic Process for FDA's Post-Market Assessment of Chemicals in Food

May 2026

U.S. FOOD & DRUG ADMINISTRATION

Human Foods Program

Tool for the Prioritization of Food Chemicals for Post-Market Assessment

May 2026

Federal Nutrition & Labeling: Multiple Moving Parts

FOP 'Nutrition Info' Box

Low / Med / High for saturated fat, sodium, added sugars

'Healthy' Claim Update

Food-group criteria + nutrient limits replacing old standard

Compliance Timelines

3 years (large mfrs)

4 years (small business) from final rule

Online Grocery Labels

20%+ of grocery sales

FDA exploring digital label requirements

The State Patchwork Is No Longer Hypothetical



Texas SB 25: Warning Labels Under Fire

44
Ingredients
Targeted

Jan 2027
Label
Deadline

Injunction
Granted
W.D. Tex.

Legal Challenges in Play:

- **1A Compelled Speech**
  Mandated warning language may fail strict scrutiny
- **Federal Preemption**
  Conflicts with FDCA labeling requirements
- **Vagueness**
  44 ingredients span different regulatory categories
- **Commerce Clause**
  Burden on interstate commerce

New York S1239F: State-Level GRAS Disclosure

Senate
Unanimous

Assembly
106-32

Status
Awaits Governor Hochul

Ingredient Bans

- Red 3 (Erythrosine)
- Potassium Bromate
- Propylparaben

GRAS Disclosure Database

- Mandatory self-affirmed GRAS reporting
- Public searchable database
- Trade secret data cannot anchor GRAS conclusion

State Developments Beyond TX & NY

Louisiana SB 14	QR-code ingredient disclosures + school food restrictions
Arizona HB 2164	UPF ban in schools by 2026-27 school year
California AB 1264	UPF definition + school food restrictions
West Virginia	Retail ingredient ban + preliminary injunction granted
Utah / Virginia	School food bills restricting additives in K-12 meals
SNAP Restrictions	17+ states exploring SNAP purchase limitations



KEY TREND

State approaches are diverging — some states ban ingredients, others require disclosure, others restrict distribution channels. Companies face compliance across multiple regulatory models simultaneously.

Federal vs. State: The Collision Points



Preemption

Express vs. Implied FDCA §403A scope

State ingredient bans vs. federal GRAS status



First Amendment

Compelled speech doctrine

Zauderer rational basis vs. strict scrutiny

TX SB 25 injunction



Commerce Clause

Dormant clause concerns

Interstate burden analysis

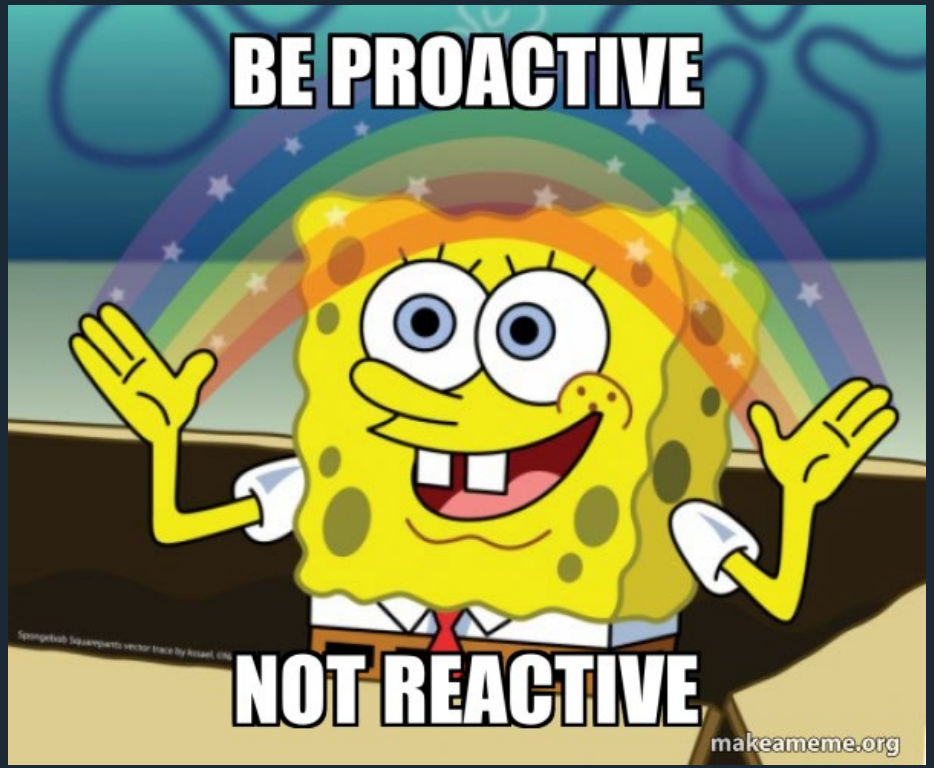
State-by-state label requirements



Who Decides Safety?

FDA vs. state legislatures vs. courts

Scientific standards vs. political will


BE PROACTIVE
NOT REACTIVE
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Steps for Building the Unified Strategy

1. Master Ingredient & Claims Inventory
2. Classify Regulatory Status
3. Map Triggers by Function, Not Name
4. Create Label-Change Control Gate
5. GRAS & Post-Market File Readiness
6. Segment: Reformulate Relabel | Restrict | Defend
7. Update Supplier Contracts & Attestations
8. Align Litigation, Regulatory, Science & Comms

Real-World Scenarios: Let's Discuss

Scenario 1

National snack brand contains Red 40 and BHA — sold in TX, NY, and CA

Which compliance workstreams trigger? What's the priority?

Scenario 2

Beverage uses a self-affirmed GRAS ingredient with no FDA notification — sold in NY

NY S1239F disclosure obligations? Federal GRAS reform impact?

Scenario 3

Cereal brand wants to add 'healthy' claim + new packaging launch in 2027

FOP labeling timeline? Nutrient profile requirements? State claims?

Scenario 4

Product claims 'no artificial colors' using natural colorants not yet FDA-listed

Natural color additive status? State definitions of 'artificial'?

Five Takeaways

1. **One inventory, not multiple trackers**
   Build a single, cross-functional ingredient and claims inventory

2. **GRAS documentation = regulatory asset**
   Well-organized safety dossiers protect against federal AND state risk

3. **Plan for both reformulation and legal uncertainty**
   Legal challenges may delay laws, but ingredient scrutiny is permanent

4. **Use label-change moments strategically**
   Coordinate FOP, 'healthy', state warnings, and voluntary updates

5. **The goal is readiness, not prediction**
   You cannot predict every outcome — but you can be prepared for all of them

Thank you! / ¡Gracias!



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